

Information Literacy Instruction Plan

Introductory Response to Law Enforcement Requests for Information

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AN INTRODUCTORY WORKSHOP RESPONSE TO LAW ENFORCEMENT REQUESTS FOR INFORMATION FOR FUTURE LIBRARIANS

LESSON TOPIC

This workshop will introduce new librarians to standard guidelines for responding to law enforcement requests for information (RFIs). The instructor will present a brief primer on the First and Fourth Amendments, identify resources to help students familiarize themselves with current best practices, provide visual aids to help learners identify types of court ordered documentation and law enforcement identification, and reinforce professional ethics by asking students to prepare an email soliciting help from library counsel, a library director, or an administrative team detailing an active law enforcement RFI.

LIBRARY TYPE & TARGET LEARNERS

Learning to respond to law enforcement RFIs has the potential to benefit all types of librarians. Future public, academic, school (P-12), and special librarians may be in attendance. Library assistants and volunteers already working in the field may or may not be privy to this information depending on their employer's current policies. Current librarians who have not had an occasion to deal with a law enforcement RFI may also benefit from a reminder of the information contained herein.

GROUP SIZE, SETTING & TECHNOLOGY REQUIREMENTS

This workshop can be held in-person or virtually, with groups of up to 20 people. More than 20 attendees may lengthen the amount of time necessary to complete the workshop. The duration of the workshop is 90 minutes. If held virtually, learners will need personal devices and internet access. Information on how to attend the class in the absence of these resources can be provided upon request.

PEDAGOGICAL APPROACH

The workshop will begin with a brief introduction from the instructor followed by voluntary introductions from students asking their names, the type of library setting they anticipate working in, and whether they have apprehension about future professional interactions with law enforcement. Any vulnerable expressions will be acknowledged respectfully. Then the instructor will begin the presentation using slides to guide the outline and pace of the workshop. Utilizing the Universal Design for Learning (UDL) framework, the presentation will include opportunities for multiple means of engagement, representation, action, and expression throughout. Students will be encouraged to interrupt for questions, use the chat function, turn on closed captioning if preferred, participate in discussion groups, utilize the Q&A, write a minute-paper style response to a prompt, and fill out pre & post assessments. They will also be supplied with shared slide materials, educational videos, infographics, and visual aids. These varied methods and opportunities will reinforce learning for folks with differing motivations, perceptions, and styles of self-expression.

CHALLENGES

The challenges anticipated for this topic include learners expressing frustration and/or vulnerability regarding police interactions. Instructors should respond in a reassuring manner and clarify that the information in this workshop is intended to benefit the learner in future library settings and bolster competence and confidence of one's own ability in the occasion that an RFI is initiated by a law enforcement agency.

LEARNING OBJECTIVES

At the end of this workshop, learners will be able to:

- discuss the protections and limitations of the First & Fourth Amendments in the context of libraries
- recognize law enforcement badges and identification
- differentiate between a warrantless request for information, a subpoena, a search warrant, and a FISA order
- ask library administrators for policy guidelines regarding law enforcement RFIs
- compose an email soliciting assistance from library counsel and administration in response to an active law enforcement RFI

WORKSHOP OUTLINE

Consider sending a baseline survey to registrants prior to the workshop to evaluate source of interest and knowledge base.

This workshop is a one-shot session that will last 90 minutes.

To begin, thank students for returning the baseline survey. Load slideshow to screen share with learners.

The first slide should explain that while this course does cover some basic legal concepts, it does not serve as legal advice and learners should be aware that they must always consult a legal representative for specific legal advice.

Part I - Introductions – 15 minutes

- Introduce yourself as the instructor and tell students about the types of libraries or information hubs you've worked in and about any apprehensions or experiences you've had with library-specific law enforcement RFIs
- Give a brief overview of the topics covered in this workshop
- Encourage questions, thoughts, and reflections throughout
- Ask for students to introduce themselves, their employment goals, and, if comfortable, to share their apprehensions about future interactions with law enforcement (give option to complete via chat)
- Be sure to acknowledge any expressed vulnerability and thank the students for sharing
- ASSESSMENT: try to observe who is participating and who may benefit from alternate means of engagement

Part II - 1st & 4th Amendments - 15 minutes (10 learning +5 activity)

- Briefly explain that, in the context of libraries, protecting intellectual freedom is valued so that library patrons/users can maintain freedom of thought
- Launch 3-minute 1st Amendment video explainer: <https://youtu.be/-YM4QorREGE?si=vIDjtg0WmrMNeAsg>

- Briefly explain that, in the context of libraries, protecting patron records is valued so that library users can maintain privacy and libraries can avoid eroding patron's trust
- Launch 5-minute 4th Amendment video explainer: https://youtu.be/tr_JgZDRbmQ?si=9h3DslanrusU72Ex
- ACTIVITY: Split students into breakout rooms/groups containing 3-4 students each to discuss how the protections and limitations of the 1st and 4th Amendments may or may not affect any given library
- ASSESSMENT: instructor can bounce between breakout rooms/groups and observe conversations and offer encouragement for diverse thought and interesting observations

Part III - Differentiating Identification & Court Documents - 25 minutes (1+1+20+3)

- 1 minute visual review of badge/police identification, very brief explanation of difference (Appendix A)
- Take 1 minute of questions (it is unlikely there will be questions here)
- 20 minute review of warrantless search vs subpoena vs search warrant vs FISA order using visual aids of court documents (Appendix B) and accompanying infographic (Appendix C)
- Take 3 minutes of questions
- ASSESSMENT: thoughtfully observe whether students are engaging with the infographic, ask students outright if the infographic is helping them to understand how each type of search is a separate device and in what occasion might each device be used by an officer of the court

Part IV - ALA Sample Policy Guideline Review - 20 minutes (15 learning +5 activity)

- Review common library administrative policies regarding law enforcement RFIs via screen share of the American Library Association's "How to Respond to Law Enforcement Requests for Library Records and User Information: Suggested Guidelines" page:
<https://www.ala.org/advocacy/privacy/lawenforcement/guidelines#:~:text=Follow%20the%20subpoena%20strictly%20and,use%20to%20the%20particular%20case>.
- Highlight that in most cases, new librarians will not need to handle responses to law enforcement RFIs directly as the RFIs are usually delegated to library counsel and administrators
- Discuss with learners that the libraries they work in may have different internal policies, encourage learners to ask their employers or managers to provide a copy of the policy for their review
- ACTIVITY: ask students to write a minute-paper soliciting a response from library counsel and/or the library's administrative team about an active/real-time law enforcement RFI
- Encourage anyone currently working in a library to use any differing knowledge of their own library's policy in their minute-paper
- ASSESSMENT: review the minute-papers following the workshop to take stock of what was learned and what may need more attention in future installments of this lesson

Part V - Question & Answer - 15 minutes

- This section includes ample time for any of the above portions that may have run over time
- Thank students for their attendance and take any additional questions
- Explain that you'd like to hear about ways the session could be improved
- Provide instructor contact information and repeat initial legal disclaimer on last slide
- ASSESSMENT: request that learners return summative survey when received

Part VI - After the Workshop

- Respond via email to any unanswered or follow-up questions from attendees, notate observations
- Send course materials and summative surveys to attendees
- Perform evaluation of summative survey, minute-papers, and notated observations

ENGAGEMENT STRATEGIES

Engagement strategies outlined above include opportunities for questions, use of the chat function, participation in discussion groups, utilization of the Q&A section, written minute-paper style response to a prompt, slide show materials, educational videos, infographics, and visual aids.

ASSESSMENT TECHNIQUES

Assessment techniques outlined above include baseline and summative surveys, observation of student engagement, and substantive review of minute-papers.

Baseline survey questions may read:

- On a scale of 1-5, how familiar are you with the protections and limitations of the First & Fourth Amendments in the context of libraries?
- On a scale of 1-5, how familiar are you with the differences between a warrantless request for information, a subpoena, a search warrant, and a FISA order?
- Have you asked a library administrator for policy guidelines regarding law enforcement RFIs? Yes or No
- If you answered no above, do you feel comfortable asking a library administrator for policy guidelines regarding law enforcement RFIs? Yes or No. If no, why not?
- What do you hope to learn about in this workshop?

Summative survey questions may read:

- On a scale of 1-5, how familiar are you with the protections and limitations of the First & Fourth Amendments in the context of libraries?
- On a scale of 1-5, how familiar are you with the differences between a warrantless request for information, a subpoena, a search warrant, and a FISA order?
- Do you feel prepared to ask a library administrator for policy guidelines regarding law enforcement RFIs? Yes or No. If you answered no, please explain your reasoning.
- What was the most useful thing you learned in the workshop?
- What additional information could have been covered in this workshop?
- What could the instructor have done better?

Following receipt of summative surveys, review survey answers and assess student progress. Take results into consideration along with assessment of minute-paper responses. Review lesson plan, slides, workshop activities, and materials. Make any necessary adjustments based on attendee feedback and in-class observations.

APPENDIX

- A. Obtain visual aid of police badge (shield, star) and a visual aid of police identification card
- B. Obtain visual aid of the front page of a subpoena, a search warrant, and a FISA order if possible
- C. Infographic:

LAW ENFORCEMENT REQUESTS FOR INFORMATION FROM THE LIBRARY:  WHAT ARE THE DIFFERENCES?				
	Warrantless Search	Subpoena	Search Warrant	FISA Order
Court Compels Library Action	✗	✓	✗	✓
Court Authorizes Officer Action	✗	✗	✓	✓
Timed Library Response Element	✗	✓	✗	✓
Nondisclosure Element	✗	✗	✗	✓
New Librarian Response	✗	✗	✗	✗